

SEQUEL



LICENCE CERTIFICATE & STANDARD TERMS

AGREEMENT NO.

DATE OF ISSUE:

This Licence Certificate (the "Certificate") and the attached Standard Terms and Conditions (collectively, the "Agreement") are issued by TBPB Ltd, trading as Sequel, whose principal place of business is 20-22 Wenlock Road, London, United Kingdom, N1 7GU (the "Licensor").

ISSUED TO:

(the "Licensee")

BINDING ACCEPTANCE:

Licensee confirms full acceptance of all terms contained within this Certificate and the attached Standard Terms and Conditions. No physical or digital signature is required to execute this Agreement.

TERMS & CONDITIONS

1. Definitions

1.1. Agreement shall mean the Licence Certificate and these Standard Terms and Conditions; 1.2. Licensor's Share shall mean the share of the Licensed Works as particularised in the Certificate; 1.3. Option shall mean the right (if any) exercisable by the Licensee to extend one or more of the following rights in the Licensed Works as more particularly described in the Certificate: Term; Territory; Media; or Scripts; 1.4. Option Fee shall mean all additional fees payable in respect of the exercise (in whole or in part) of the Option as more particularly described in the Certificate or (if no fee is specified) as may be agreed in writing between the parties; 1.5. Parties shall mean the parties to this Agreement and "Party" shall mean either of them; 1.6. Licensed Works shall mean the Sound Recording, the Composition, or both, strictly as defined in the Rights Granted section of the Certificate.

2. Grant of Rights & Exclusivity

In consideration of and subject to full payment of the Licence Fee, the Licensor grants to the Licensee the exclusive right, strictly during the Term, to edit and use the Licensor's Share of the Licensed Works solely in timed synchronisation with, and as part of, the soundtrack of the Production advertising the Brand to be transmitted on the Media for exhibition within the Territory.

3. Excluded Rights

3.1. All rights in the Licensed Works other than those expressly granted in this Agreement are excluded from the scope of this Agreement. For the avoidance of doubt, save as expressly permitted, the Licensee may not do any of the following without prior written consent: 3.1.1. re-record, transcribe, modify, parody, sample, arrange or adapt the Licensed Works or any part of them; 3.1.2. edit the Licensed Works or any part of them other than for the licensed purpose of recording the Licensed Works in timed synchronisation with and as part of the soundtrack of the Production; 3.1.3. use the title, sub-title or lyrics of the Composition in the title, sub-title, script or story of the Production; 3.1.4. produce, promote and exploit audio or audio-visual recordings of the Licensed Works in any medium independently of the Production; 3.1.5. perform the Licensed Works in public or communicate them to the public in any medium independently of the Production; 3.1.6. use the Licensed Works in connection with any brand or production other than the Brand and the Production covered by this Agreement; 3.1.7. use the Licensed Works in any obscene, defamatory or derogatory manner or context; 3.1.8. use the Licensed Works (or any part thereof) as a sonic logo, mnemonic, audio signature or brand theme; 3.1.9. use, scrape, input, or make available the Licensed Works (or any part thereof) to train, develop, or generate content using any Artificial Intelligence (AI) system, machine learning model, algorithm, or similar technology.

3.2. The Licensee must obtain permission from the relevant third parties referred to below to do any of the following: 3.2.1. from all and any other owners of the Licensed Works, where the Licensor's Share is not one hundred per cent (100%), to use any part of the Licensed Works not owned and/or controlled by the Licensor; 3.2.2. from the local performing right society to perform the Licensed Works in public or communicate them to the public.

4. Licence Fee

4.1. The Licence Fee shall be paid by the Licensee within thirty (30) days from the date of the valid invoice. 4.2. In the event the invoice is not paid in full, any rights granted in this Agreement shall be deemed unexecuted and withdrawn, and any use of the Licensed Works will be considered a wilful infringement of copyright. 4.3. The Licence Fee is non-returnable in any circumstances, save for instances of fraud or misrepresentation.

5. Licensee's Obligations

The Licensee shall, upon the request of the Licensor, use its best endeavours to provide to the Licensor upon request but no earlier than one (1) week before the First Transmission of the Production: 5.1. one (1) high-resolution digital video file (e.g., MP4) or an accessible streaming link of the finished print of the Production at no cost to the Licensor for internal, online/offline showreel, Licensor and Writer(s) website, award entry use, award website and online/industry PR; 5.2. consignment notes for each and every version of the Production in the UK and notification of all versions used overseas to the best of the Licensee's knowledge; 5.3. industry-standard identification numbers (e.g., Clock numbers, ISCI codes, or local equivalents) for each and every version of the Production upon request by the Licensor; 5.4. the original title of the Sound Recording/Composition and the ISRC (where available) in the Consignment Note to be delivered to the relevant local broadcast authorities; 5.5. shall obtain any and all other consents from third parties that may be necessary to use the Licensed Works and transmit the Production in accordance with this Agreement, including but not limited to those referred to in Clause 3.2 above; 5.6. shall indemnify and hold the Licensor harmless from any liability, damages or costs arising out of any breach of the terms of this Agreement by the Licensee pursuant to a final judgment of a court of competent jurisdiction or settlement consented to in writing by the Licensee, such consent not to be unreasonably withheld; 5.7. ensure that the Licence Fee is on a so-called "favoured nations" basis, so that the Licence Fee will be greater or at least equal to the sum of any Licence Fee, payments or other benefits payable by the Licensee in respect of any other master recordings or composition(s) embodied in the Production; 5.8. include a link to digital streaming outlets (e.g., Spotify, Apple Music), if provided, to the description of any digital/YouTube upload of the Production, if applicable, and to include a credit to the Composition and the Writer(s).

6. Licensor's Obligations

The Licensor warrants, represents and undertakes that the Licensor: 6.1. is entitled to grant the rights in the Licensed Works herein expressly granted; 6.2. has the right, power and authority to enter into this Agreement; 6.3. has sought and given full and final approvals from the Writer(s) to license the Licensed Works for the Production and Brand on the basis of the information and creative concept provided by the Licensee; 6.4. shall indemnify and hold the Licensee harmless from any liability, damages or costs arising out of any breach of the terms of this Agreement by the Licensor pursuant to a final judgment of a court of competent jurisdiction or settlement consented to in writing by the Licensor, such consent not to be unreasonably withheld, provided that the Licensor's liability hereunder shall be limited to the amount of the Licence Fee in the absence of fraudulent misrepresentation.

7. Assignment

This Agreement shall be personal to the Licensee and may not be assigned or transferred to any third party without the prior written consent of the Licensor, provided that the Licensor shall not unreasonably withhold or delay consent to any assignment to the Client or to a bona fide advertising agency replacing the Licensee for the Client, subject to the Client or advertising agency undertaking in writing to the Licensor to be responsible for the obligations of the Licensee hereunder. The Licensor shall be entitled to assign this Agreement.

8. Termination and Option

8.1. All rights herein granted shall immediately terminate automatically upon the expiration of the period specified in the Term; 8.2. The Licensor shall have the right to terminate this Agreement forthwith if the Licensee commits a material breach of this Agreement and fails to remedy the same within fourteen (14) days of being required in writing to do so; 8.3. This Agreement shall terminate forthwith if the Licensee shall enter into liquidation or if the Licensee shall make any composition with its creditors or if a Trustee or Receiver is appointed to take over all or a substantial part of its assets; 8.4. The Licensor shall not be obliged to return the Licence Fee or any part thereof upon termination of this Agreement for whatever reason; 8.5. The Licensee may exercise the Option(s) (if any) by notice in writing served no less than thirty (30) days prior to the expiry of the Term setting out which parts of the Option are being exercised and confirming the relevant Option Fee. In the event that the Option Fee is not paid within thirty (30) days of exercise, the Licensor shall have the right to terminate all rights extended by the Option.

9. Data Protection

Both Parties agree to comply with all applicable data protection and privacy legislation in force from time to time in the UK including the General Data Protection Regulation (EU) 2016/679 as retained in UK law (UK GDPR) and the Data Protection Act 2018. Any personal data shared between the Parties shall only be used for the purposes of executing and managing this Agreement.

10. Miscellaneous

10.1. The waiver by the Licensor of any of the terms of this Agreement shall not be deemed a waiver as to the future or as to any other terms; 10.2. Notices shall be in writing and sent by email to the current (or last known) email address of the principal contact of the party to be served; 10.3. This Agreement may not be modified or varied other than in a written document agreed by both parties; 10.4. This Agreement shall constitute the entire agreement between the parties for the use of the Licensed Works; 10.5. No person shall derive any right, entitlement, claim or benefit in relation to this Agreement by virtue of the Contracts (Rights of Third Parties) Act 1999; 10.6. This Agreement shall be subject to the laws of England and the parties agree to submit to the exclusive jurisdiction of the English Courts.

11. Confidentiality

The parties acknowledge and agree that the terms of this Agreement are confidential and that neither party shall disclose the same to any third party save to their professional advisors as may be necessary, as required by law, and, at the Licensor's sole election, to the Writer(s) or other parties from whom the Licensor derives authority.

LICENCE

Rights Granted

Licensor's Share

Title:

Writer(s):

Owner: TBPB Ltd Trading as Sequel

Production:

Client:

Brand:

Campaign:

Scripts:

Cutdowns included:

Media:

Territory:

Term:

First Transmission:

Licence Fee:

Option: To extend all terms of this agreement for an additional period of the Term, for an additional payment of the **Option Fee**.

Option Fee: Licence Fee + 10% to cover one hundred per cent (100%) of the Rights Granted.